Scope of Work by Advisor

REF: https://chatgpt.com/g/g-p-6a27047216788191b6530a921dc45659-credentialing-revision/c/6a2704f4-622c-83ea-a841-7e37629bc2dc

Start now—but separate **work you can safely complete internally** from **work that requires counsel before adoption or execution**.

Claude's timeline is broadly right. I would simplify it into **six milestones across two parallel tracks**.

The actual finish lines

Finish line 1 — Provider-ready

You can recruit, contract, verify, receive PHI from, and route assignments to providers.

Milestone 1 — Publicly truthful

Release 1:

- correct prepaid/prefunded language;
- remove claims-workflow contradictions;
- remove unsupported compliance claims;
- de-emphasize workers' compensation;
- revise the Provider Opportunity Brief.

Your involvement: approve final copy.
Estimated hands-on time: 1–2 focused days.
No counsel required to begin.

Milestone 2 — Commercially coherent

Release 2:

- rewrite employer hero proposition;
- explain employer as buyer;
- position $0 member cost as steering;
- add funded-account language;
- label market-specific rates;
- revise the Employer ROI Report.

Your involvement: approve the core employer proposition and economics.
Estimated hands-on time: 1–2 focused days.
No counsel required to begin, provided you avoid publishing legal conclusions such as "ERISA compliant."

Milestone 3 — Provider contract ready

Release 3 contract work:

- minimally amend PSA v6.1;
- attach Exhibit C;
- resolve existing PSA defects;
- update DocuSeal;
- obtain counsel approval.

You can prepare the clause map and draft internally. Do not execute the revised BAA or rely on its legal structure until counsel reviews it. HIPAA generally requires written business-associate arrangements when a covered entity uses a business associate, and those contracts define and limit the permitted PHI uses.

Milestone 4 — HIPAA operationally ready

This is more than having a BAA.

You need:

- PHI data-flow map;
- security risk analysis;
- written policies;
- incident-response procedure;
- workforce training;
- downstream vendor BAAs;
- access/amendment/accounting request process;
- data-retention decision.

HHS treats risk analysis as foundational to Security Rule compliance; this work does not depend on having the final PSA wording.

Milestone 5 — Routing ready

Specify and build the minimum Funding Gate:

1. employer program active;

2. member eligible;
3. valid physician order;
4. approved service;
5. funding arrangement active;
6. sufficient balance or capacity;
7. routing permitted.

At that point, the provider side is functionally ready.

Finish line 2 — Employer-ready

Milestone 6 — Employer contracting package

You need:

- Employer Services Agreement;
- funded-account terms;
- employer rate exhibit;
- employer-side BAA;
- counsel's answer on Florida administrator licensing.

Florida's administrator definition expressly reaches persons who collect certain charges or premiums or adjust or settle claims in connection with insured or self-insured health programs. Whether USRad's exact prefunded vendor structure falls inside or outside that definition depends on its actual functions and contracts.

That question needs counsel before you sign an employer—not before you begin Release 1.

What to start first

Do these in this order.

1. Lock the remaining founder decisions

One focused session:

- fee table by modality;
- member cost-share policy;
- de-identification scope;
- breach-notification timing;
- data-retention posture.

These decisions prevent the BAA, PSA, pricing copy, and employer product from drifting.

2. Start Release 1 immediately

This is the right first build because it:

- removes false statements;
- lowers public risk;
- requires no new architecture;
- gives CC a bounded, verifiable work order.

Use Addendum B as the controlling copy specification for the provider brief and economics.

3. Begin the HIPAA inventory in parallel

Do not wait for counsel.

Create a spreadsheet or EDS register containing:

- vendor;
- service;
- PHI received or visible;
- data stored or merely transmitted;
- BAA available;
- required plan/tier;
- current contract status;
- remediation decision.

Include Supabase, Vercel, email, SMS, error monitoring, analytics, support tools, backups, DocuSeal, and any AI service.

This is factual discovery, not legal drafting.

4. Request vendor BAA information now

You are not committing to anything by asking:

- Does the vendor offer a BAA?
- On which plan?
- What products are covered?
- Are logs, analytics, backups, and support access included?
- What security documentation is available?

That clock should start immediately.

5. Create the PSA amendment map

Do not yet produce a polished final PSA.

Build a table:

Clause	Keep	Revise	Delete	Add	Reason

That gives counsel a narrowly framed review instead of asking them to redesign your agreement.

6. Engage counsel after the package is organized

Give counsel one controlled scope:

- validate the PSA amendment map;
- review Exhibit C;
- confirm Covered Entity/Business Associate roles;
- analyze §626.88 under the proposed prefunded model;
- identify required employer-side documents.

That is more efficient than contacting counsel with an unresolved business model.

What you can do without counsel

You can safely begin and largely finish:

- Release 1 website edits;
- Release 2 commercial copy drafts;
- Provider Brief revisions;
- Employer ROI Report corrections;
- unsupported-claim removal;
- founder decision memo;
- PSA clause map;
- BAA issue list;
- PHI data-flow inventory;
- vendor BAA requests;
- security-risk-analysis preparation;
- minimum Funding Gate specification;
- employer-agreement outline.

What should not be finalized without counsel

Do not treat these as approved or executable yet:

- Exhibit C;
- revised PSA;
- employer agreement;
- employer-side BAA;
- statements that the arrangement is ERISA compliant;
- conclusions that USRad is outside Florida administrator licensing;
- treatment of employer funds as deposits, plan assets, revenue, or custodial funds;
- legal retention periods;
- indemnification and breach-allocation provisions.

Your time commitment

Claude's estimate of roughly **three weeks of concentrated founder effort spread across eight to twelve calendar weeks** is reasonable.

Your work should come in bursts:

Week 1

Founder decisions, Release 1 approval, vendor inventory.

Week 2

Release 2 proposition, PSA clause map, counsel package.

Weeks 3–6

Counsel review, vendor BAAs, risk analysis, HIPAA policies.

Weeks 5–8

DocuSeal update and minimum Funding Gate specification/build.

Weeks 6–12

Employer agreement package and licensing analysis.

Several tracks can overlap, so this is not twelve weeks of continuous daily effort.

My recommended first move

Begin with a **Founder Decision and Release Authorization Memo** containing:

1. the four governing prefunding principles;
2. the five remaining founder decisions;
3. authorization for Release 1;
4. authorization to inventory PHI vendors and request BAAs;
5. instruction that legal documents remain draft pending counsel.

Then hand Release 1 to CC while you begin the vendor and counsel package.

That preserves the EDS decision chain:

> evidence gathered → founder decision recorded → bounded implementation → verification → EDS update.

You do not need counsel's permission to correct your website, organize your contracts, inventory vendors, or define your intended operating model. You need counsel before you **rely legally on the contracts and money-flow structure**.